

HOUSE No. 376

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act restricting the sale of certain items at flea markets.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 376

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 376) of Colleen M. Garry for legislation to restrict sales of certain items and products at flea markets, so-called. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 308 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act restricting the sale of certain items at flea markets.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 101 of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by deleting section 18A and inserting in place thereof the following section:—

3 Section 18A. (A) No person, except an authorized manufacturer's or distributor's
4 representative possessing on his or her person written proof of that authorization for public retail
5 sales, shall sell, offer for sale, or knowingly permit the sale at any flea market, so-called, any of
6 the following items:

7 (i) food manufactured and packaged for sale for consumption by a child under the age of
8 two years;

9 (ii) drugs and cosmetics, as those terms are defined in section one of chapter ninety-four;

(iii) any product which has an expiration date.

(B) In this section, “manufacturer’s or distributor’s representative” shall mean a person who has on his person and available for public inspection written proof that he or she is authorized by the manufacturer or distributor for the public retail sale of those products which are offered for sale. Such credentials shall include the seller’s name and may include a date upon which such authorization shall expire.

(C) In this section, “flea market” shall mean any location other than a permanent retail store at which space is rented or otherwise made available to others for the conduct of business as transient or limited vendors; Transient or limited vendors shall not include those persons who sell by sample, catalogue or brochure for future delivery, or those persons who make sales presentations pursuant to a prior invitation issued by the owner or the legal occupant of the premises.

(D) Any person who violates the provisions of this section shall be punished by a fine of not less than \$100 or more than \$1,000 per violation. The sale of each product unit shall constitute a separate offense, and all such product shall be seized and forfeited to the Massachusetts Department of Public Health.

(E) The presenting of credentials pursuant to the requirements of this section which are false, fraudulent, forged, fraudulently obtained or the nature of which is misrepresented shall also be considered a prohibited act punishable by the same means as subsection (D) of this section.

(F) The appropriate law enforcement agency investigating any violation of this Act shall maintain a record of such violation available for public inspection.